

1.—(1) This Act shall extend to Scotland only, and shall be construed with the Prisons (Scotland) Act, 1877. Extent, construction, and short title.

(2) This Act may be cited as the Prisons (Scotland) Act, 1909, and this Act and the Prisons (Scotland) Acts, 1860 to 1904, may be cited as the Prisons (Scotland) Acts, 1860 to 1909. 40 & 41 Vict. c. 53.

2. The Secretary for Scotland may annually appoint, to be additional members of the visiting committee for any prison where female prisoners are received, a woman, or such number of women as shall not exceed one-third of the prescribed number of such committee. Appointment of women on visiting committees

CHAPTER 28.

An Act to remove doubts as to the manner in which accused persons may be detained in custody, pending trial, under the provisions of the Summary Jurisdiction (Scotland) Act, 1908. [25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. This Act shall extend to Scotland only, and may be cited as the Summary Jurisdiction (Scotland) Act, 1908, Amendment Act, 1909, and the Summary Jurisdiction (Scotland) Act, 1908, and this Act may be cited together as the Summary Jurisdiction (Scotland) Acts. Extent, citation, and short title. 8 Edw. 7. c. 65.

2. It is hereby declared that where, in any case, prior to the commencement of the Summary Jurisdiction (Scotland) Act, 1908, it was lawful, pending trial, to exercise the power of detaining an accused person in custody, otherwise than in prison, nothing contained in the said Act shall be construed as making it unlawful, or as having at any time prior to the passing of this Act made it unlawful, in the like case to exercise the like power of detention. Power to detain, pending trial, otherwise than in prison.

CHAPTER 29.

An Act to make provision for the better administration by Central and Local Authorities in England and Wales of the enactments relating to Education.

[25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Application of
2 Edw. 7. c. 42.
s. 17, to powers
under other
Acts.

1. The provisions of section seventeen of the Education Act, 1902, requiring that all matters relating to the exercise by a local education authority or council having powers under that Act of their powers under that Act shall stand referred to the education committee constituted under that section, and enabling the local education authority or council to delegate to the education committee so constituted any of their powers under that Act, shall apply not only with respect to the powers conferred on the local education authority or council under that Act, but also to any powers connected with education conferred by or under any other Act, scheme, or order, on the authority or council, expressly as a local education authority or as a council having powers under the Education Act, 1902, except the power of raising a rate or borrowing money.

Accounts of
managers of a
school pro-
vided under
Part II. of
2 Edw. 7. c. 42.

2. Where any receipts or payments of money are entrusted by a council having powers under Part II. of the Education Act, 1902, to the managers of any school provided by them for the purpose of supplying education other than elementary, the accounts of those receipts and payments shall be accounts of the council under the Education Act, 1902, but the auditor of those accounts shall have the same power with respect to the managers as he would have if the managers were officers of the council.

Joint action
under Part II.
of the Educa-
tion Act, 1902.

3. For the purpose of establishing or maintaining any school or college which any council have power to establish or maintain under Part II. of the Education Act, 1902, the council shall have power and shall be deemed always to have had power to unite with any other council having powers under that Part of that Act, on such terms as to payment, the appointment of a joint body of managers, and otherwise, as may be or may have been agreed between them.

Validity of
undertakings
by students
on entering
training
colleges.

4. Where with a view to following the profession of teacher a person has, in pursuance of regulations made by the Board of Education, entered into an undertaking that he will, in consideration of any grant made by the Board in respect of his maintenance, education, and training, complete the course of education or training specified in the undertaking, and will subsequently follow the profession of teacher in the manner and for the period specified in the undertaking, and in the event of failure to do so will repay to the Board such proportion of the grants made by the Board as is specified in the undertaking, the undertaking shall be binding on him notwithstanding that he was an infant at the time when the undertaking was given, and any sums repayable in accordance with the undertaking shall be recoverable as debts to the Crown.

Appropriation
to other pur-
poses of land
acquired for
educational
purposes

5. The council of any county, borough, or urban district may, with the consent of the Board of Education, appropriate any land held by them in their capacity as local education authority for any of the purposes of the council, otherwise than

in their capacity as local education authority, approved by the Local Government Board :

Provided that the council shall not on any lands so appropriated—

- (a) create or permit any nuisance ; or
- (b) sink any well for the public supply of water or construct any cemetery, burial ground, destructor, station for generating electricity, sewage farm, or hospital for infectious disease, unless, after local inquiry and consideration of any objections made by persons affected, the Local Government Board, subject to such conditions as they think fit, authorise the work or construction.

6. In any legal proceedings by a local education authority, the production of a certificate, purporting to be signed by a duly qualified practitioner approved by the Board of Education for the purposes of subsection three of section one of the Elementary Education (Defective and Epileptic Children) Act, 1899, to the effect that a child is defective or epileptic within the meaning of that section, shall be sufficient evidence of the facts therein stated, unless the parent or guardian of the child referred to in the certificate requires the medical practitioner to be called as a witness ; but it shall be lawful for the parent or guardian to give evidence in proof that the certificate is incorrect.

Proof of certificate under 62 & 63 Vict. c. 32. s. 1, legal proceedings.

7. This Act may be cited as the Education (Administrative Provisions) Act, 1909, and shall be construed as one with the Education Acts, 1870 to 1907, and those Acts and this Act may be cited together as the Education Acts, 1870 to 1909.

Short title and construction.

CHAPTER 30.

An Act to make better provision for securing safety at Cinematograph and other Exhibitions.

[25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. An exhibition of pictures or other optical effects by means of a cinematograph, or other similar apparatus, for the purposes of which inflammable films are used, shall not be given unless the regulations made by the Secretary of State for securing safety are complied with, or, save as otherwise expressly provided by this Act, elsewhere than in premises licensed for the purpose in accordance with the provisions of this Act.

Provision against cinematograph exhibition except in licensed premises.